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PART FOUR

Comparative Overview

The Comparative Ethics of War and Peace

Terry Nardin

THE PURPOSE OF THIS comparative overview is to consider, in relation to one another, the six ethical perspectives discussed in the preceding chapters. What are the defining assumptions and arguments of these perspectives as historically constituted and intellectually coherent patterns of thought? How does each handle the basic questions of war/peace ethics? Where do they differ, and which of these differences are fundamental? Can we identify areas of actual or potential agreement? Clearly, in a broad comparative inquiry of this kind, the focus must be on general themes rather than on the nuances of each perspective.

BASIC ASSUMPTIONS

The ethics of war and peace in the modern states system is addressed most directly by natural law and political realism, which can be understood as two sides of a continuing dialogue.

The natural law tradition is an attempt to give systematic expression to the moral point of view. Central to it is the idea of a rationally knowable system of moral precepts—natural law—imposing duties on all persons as rational beings. It is these precepts, and not the consequences of one's acts, that provide the standard of right and wrong in conduct. Moreover, the precepts of natural law must be distinguished from positive law or custom. And because they govern all conduct, they apply to public as well as private life.

Political realism is often identified with moral skepticism, the view that morality has no place in public life. But it is better understood as arguing only that there are severe *limits* to morality in public life. Moral constraints exist, but they may have to be set aside for "reasons of state." Realism is a kind of particularistic consequentialism: it seeks to guide conduct by evaluating the consequences of action (especially the actions of public officials) for the interests, security, or survival of the state. Realism thus acknowledges the authority of morality—up to a point. But it does not flinch from aggression or the deliberate killing of innocents, if such measures are required to protect the public safety. Moral constraints are to be respected where possible, but they do not have overriding authority.

Both realism and natural law offer ethical guidance for the conduct of foreign policy, and the tension between them can be seen in diplomatic practice, in international law, in “just war theory,” and in the military codes of states. If the traditions of Judaism and Islam do not fit comfortably into this debate, it is not because they are unconcerned with the tension between moral law and political expediency, but because their ideas about “international relations” are different from those of realism and natural law.

Judaism has been peculiarly insulated from the realities of diplomacy and war. The rabbis who argued among themselves in the Jewish communities of the diaspora were more concerned (in their discussions of this topic) with biblical exegesis than with their own political situation. Their debate, even when it moves beyond the wars of Joshua and David, has for two millennia focused on hypothetical Jewish wars, for only since 1948 has there once again been a Jewish state, and therefore actual Jewish wars. Insofar as one can find a Jewish “international ethics” in this rabbinic legacy, it is largely one that offers guidance for isolated communities of Jews embedded in a non-Jewish, and recurrently hostile, environment.

For Islam, the primary community is the notionally expanding community of believers (*umma*). The “international ethics” of this Muslim community, which is neither a diaspora nor a state, is concerned with relations between rival religious communities, not states. The moral ideas it draws upon in discussing these relations, however, hold all human relations to the constraints of divine law. Muslim war/peace ethics, though only indirectly focused on interstate relations, is therefore always concerned with the lawfulness of war, demanding moral justification for the decision to use force and for the way it is used.

Like Judaism and Islam, Christian pacifism has not been primarily concerned with articulating principles to guide the conduct of states. It offers a critique of statecraft, but is barred from developing a practical ethic for using armed force as an instrument of policy by its blanket repudiation of what it calls “violence” and by its concern for individual commitment to Christian faith and fellowship. As Ted Koontz points out, the kind of pacifism that is driven by religious and moral commitment to nonviolence can be distinguished both from an “abolitionist” commitment to transforming the world through the creation of new institutions for settling disputes peacefully and from the view that existing communities can be defended against aggression by “nonviolent resistance.” But all three members of the nonviolence family challenge the view, implicit in realist and natural law ideas of necessity and last resort, that force can be presumed to be effective.

Feminist thought on war and peace is relatively undeveloped, perhaps because women have been excluded from decisions to make wars and from actually fighting them, and because self-conscious feminism itself is rela-

tively new. Like Christian pacifists, feminists set themselves in opposition to a political world they feel they have not made. By questioning received assumptions, feminism invites us to rethink questions of war and peace, and it problematizes the gendered identity of women as civilians and men as soldiers. But there is as yet no settled feminist ethical tradition, only a diversity of feminist idioms: Marxist, liberal, radical, maternalist, etc. Feminists remain divided concerning the ethics of war and peace.

CONCEPTIONS OF WAR AND PEACE

In Judaism, Islam, and Christianity the idea of peace has two dimensions. All three religions distinguish true peace from mere truce. The Hebrew *shalom* is the cessation of fighting, a period of rest following surrender or victory, but it is also a permanent condition of perfection to be realized only with the coming of the messiah. In Islam, permanent peace, *salam*, is possible only on the basis of God's law, which requires that we acknowledge God's authority over us. And because the God to whom we must submit is the God of Islam, this peace can be enjoyed only within the Muslim community. It is the condition that prevails within the expanding realm of Islam and that will someday, with the ultimate conversion or subjugation of all non-Muslims, prevail everywhere. For natural law, true peace is not the mere absence of violence but an ordered tranquility in which war would never be an attractive option. Peace is the willing cooperation of individuals within a community, and of communities within a larger community of communities. A similar view of peace is held by those committed to Christian pacifism, though the pacifist may perceive violence where the natural lawyer does not. But the Christian pacifist also stresses how, by repaying evil with good, by forgiving the wrongdoer while resisting wrongdoing, one can be at peace with one's enemies even in the midst of war.

War, too, has a dual reference in these traditions: it is both the actual clash of armies and a metaphor for disorder. The Hebrew word for war, *milkhama*, refers to Jewish battles, actual or notional, but it also stands for the violent conditions in which Jewish communities both before and during the diaspora have struggled for existence. The Arabic words for war include *qital*, fighting or battle, and *harb*, discord or strife (as in *dar al-harb*, the domain beyond the sway of Islam, which is a domain of not-peace). More familiar to non-Muslims is *jihad*, a word with many meanings: to exert oneself; to exert oneself against resistance and thus to struggle; to struggle in behalf of Islam; and to struggle against the enemies of Islam. Given these connotations, it is not surprising that the religious imperative of jihad should be used to justify the use of armed force, and not only by those committed to Islamic revival or those who, like Saddam Hussein in

the Gulf War, disingenuously exploit revivalist sentiment. But the identification of jihad with war is, in Muslim discourse, always an interpretation of its core meaning: the striving to reject evil that goes on in every soul, and that receives its collective expression in the duty of the Islamic community to realize a divinely sanctioned ethical system. Only in some contexts, then, does jihad mean actual armed conflict; often, it is closer to an expression like “the war on poverty” (with an added dimension of religious duty) than it is to “just war.”

War, in realist discourse, is an instrument of policy. But it is also a permanent condition of fear and insecurity. Either the imperative of self-preservation (Hobbes) or the logic of war itself (Clausewitz) tends to drive policy beyond the limits of moral restraint: as the Romans said, “Necessity knows no law.” And in feminist discourse, war is often understood to be the manifestation or consequence of male aggression, male power, and a male-dominated social order; peace, in contrast, is the expression of feminine benevolence, sociability, and nonviolence (though many feminists challenge these understandings). War is also a metaphor for the relations between men and women, which suggests that peace would involve a profound alteration of these relations—at the very least, an end to male domination.

Given its commitment to nonviolence, Christian pacifism is reluctant not only to offer judgments of the rights and wrongs of war but even to distinguish different kinds of war. It is, in fact, inclined to include all kinds of coercion, force, violence, war, and oppression in the blanket category of “violence.”

ATTITUDES TOWARD WAR AND NONVIOLENCE

None of these viewpoints is inherently militarist. All view war as at best a means and not as an end in itself. On what is this presumption against war based? What support can be found in each perspective for nonviolent or abolitionist attitudes?

Realism comes closest, in its Machiavellian moments, to finding positive value in war. But if we understand realism to be a state-centric form of consequentialism, it cannot be said to be committed to war as a way of life; rather, its attitude is a pragmatic one in which war is chosen or rejected as an instrument of policy according to circumstances. There is in realism, nevertheless, a bias against nonviolence: the use of force may sometimes be imprudent, but a refusal on principle to use it is foolhardy. Nonviolence is helpless in the face of ruthless adversaries: it can neither thwart their aims nor transform their characters. Nor can we hope to transform the character of international relations by establishing a world government, for (as Kant observes) this would only trade international for civil war. On the reasons for this pessimism, realists divide, some basing their doubts on

theology or on a theory of human nature, others simply on experience and on skepticism regarding the claims of utopian politics.

Whereas some Christians accept the necessity of force, others argue that their faith commits Christians to the practice of nonviolence: using force, they argue, is incompatible with the principles of love, forbearance, forgiveness, and reconciliation. Also, there may be more effective and less costly ways to resist aggression and to settle conflicts. But the main concern of the Christian pacifist is to create and sustain a community of believers committed to living according to these principles “defenselessly,” and to accepting the suffering to which this choice can lead. Catholic natural law, in contrast, teaches that though war is an evil, the use of military force may be permissible in some situations. But its justice can never be presumed. Furthermore, even where the cause is just, a war can be justly begun only if authentic efforts to avoid it through compromise have proven fruitless: war is justly chosen only when it is forced upon one, and even then one must seek only to resist aggression and not intend to kill.¹

Judaism and Islam are even less traditions of nonviolence. Although there is disagreement within the tradition, on the whole Judaism accepts resistance, fighting, and killing as necessary for self-defense. The rabbis assume that enmity toward Jews and the need to fight is the normal condition of things in a premessianic world, but they neither glorify war nor condemn it. And there are no wars of conversion in Judaism: a Jewish holy war is a war of extermination, though the conditions justifying wars like those fought against Amalek and Canaan may never be repeated. Islam is more ambivalent. The call (*da‘wa*) to serve Islam can be pursued through war if unbelievers refuse either to convert or to accept the status of a religious minority within the realm of Islam. Muslims who die in response to the *da‘wa* are blessed by Allah, but the glorification of violence that one can find in modern fundamentalist thought has few precedents in the tradition. Armed jihad is rejected by those who, though faithful to the mission of Islam, insist that belief cannot be secured by force and that religious diversity is tolerable. For Muslims who hold views of this sort, nonviolent propagation of the faith is both expedient and proper. They find warrant for nonviolence in the Qur’an and in Muhammad’s commitment to nonviolent resistance during his early years in Mecca. Even the Prophet’s reluctant endorsement of limited warfare after his move to Medina can be taken to support the view that fighting is undesirable for Muslims, and that it is permissible only if there is no other effective way to resist aggression against the faith.

Christian pacifism repudiates the instrumental acceptance of war found in other perspectives. War is sin, a kind of human idolatry. In a world of war, Christians cannot be anything but nonviolent if they are faithful followers of Christ. This nonviolence does not entail complete refusal to cooperate with the world, however. Pacifists can hold government positions

almost as easily as those committed to just war principles: both will face situations in which their commitments clash with policy, forcing them to take a stand. Pacifists can (some say must) participate in the world by serving their neighbors, and they must look for nonviolent ways to perform this service while seeking to transform the world so that war will cease to be an option.

Feminism is ambivalent about war, actual and metaphorical. When it is identified with rights, privileges, and opportunities from which women have been wrongly excluded, war can be seen as an activity that should be opened up to female participation. Identified as a pathology of the male-dominated social order, war ("the war system") can be seen as a way of life to be reformed by female virtues. Identified with gender relations, specifically with male domination itself, war is not the lawless anarchy (the war of all against all) anatomized by Hobbes, but an entrenched patriarchy (the war of men against women) to be resisted and, ultimately, overturned by abolishing the gender system. As Elshtain puts it, "Feminism has not quite known whether to fight men or to join them; whether to lament sex differences and deny their importance or to acknowledge and even celebrate such differences; whether to condemn all wars outright or to extol women's contributions to war efforts."² Hence the diversity of historical images of women in relation to war: the female patriot, the female as embodying the ideal of peace in a (male) world of war, and the female moralist committed to the practice of "maternal thinking" or an "ethic of care."

GROUNDINGS FOR WAR

What grounds for war, if any, are recognized within these perspectives? What criteria are used to distinguish justifiable from unjustifiable wars? Let's begin with political realism and natural law, for it is from the dialectic between them that we have the ancient yet still evolving idea of "just war."

For the realist, war is an instrument of state purposes to be used when it seems useful. But rules constraining the resort to arms can also be useful, and should be observed for the same reason. It follows that the rules cannot be allowed to obstruct the use of force where observing them would interfere with the protection of important national interests. States may use armed force not only to defend themselves against attack but also to avoid a dangerous loss of power. Though preempting an imminent threat might be justified morally as self-defense, a state may have to act "aggressively," and therefore "unjustly," to deal with more distant threats to national security. Realists often oppose such preventive war on prudential grounds, but realism itself has no principled objection to it.

Because natural law is concerned with articulating these "principled objections," we usually see it as more restrictive than political realism. Thus, the principle of self-defense is more constraining than the realist's expan-

sive goal of self-preservation. And even in properly defensive wars, those against whom the defender fights must merit attack by having committed aggression. Moreover, aggressors cannot justly defend themselves against counterattack. Nevertheless, its principles sometimes make natural law seem more, not less, permissive than realism. It is more permissive, for example, when it recognizes as a ground for war the righting of a wrong done, either by restoring the damage done to the victim or by punishing the wrongdoer.³ But the natural law tradition seems to be moving away from the view that war is a legitimate way to punish wrongdoing. A state cannot, as moralists once presumed, wage punitive war against entire communities. Increasing doubts about a practice of self-help in which states go beyond defending themselves to punish one another raise the question of whether armed reprisals can be justified by natural law.

In addition, as we have seen, the natural law tradition holds that a war cannot be justly begun if there is a reasonable prospect of avoiding it by nonviolent means. There must also be some reasonable hope of success, and the foreseeable side-effects of the war must not be excessive. But these precepts cannot be mechanically applied. They imply judgments of what is sometimes called “proportionality,” but which Finnis argues is really a matter of fairness: fairness, because such judgments are to be made *not* by weighing objectively commensurable benefits and costs, but by striving to be impartial in assessing the justice and injustice of accepting the harms resulting from each of the alternatives being considered.

Many Jews seem to think that their tradition supports “just war” precepts like those of natural law. But rabbinic discourse down through the centuries has produced a rather different set of principles. Insofar as a war is seen as fighting undertaken by a Jewish sovereign or community, it is either a war commanded by God to conquer and later defend the land of Israel, or a war of expansion permitted to David as king. The rabbinic dichotomy of commanded and permitted wars is certainly quite different from the natural law distinction between just and unjust wars. As Walzer points out, the former is incomplete, for it suggests a (missing) third category of wars, those neither commanded nor permitted but forbidden. But there is disagreement whether (as Walzer suggests) the absence of a category of prohibited war indicates a willingness to tolerate wars of aggression, that is, wars fought to extend a king’s domain or enhance his greatness, or whether (as Ravitzky argues) this absence should be taken as evidence that the prohibition of such wars is taken for granted. Walzer may be right that the distinction between commanded and permitted wars is an “academic” one, surviving precisely in the absence of politics. If so, then perhaps as it is tested, the distinction will give way to more familiar categories.

This does not mean that there are not explicit sources and arguments in the tradition on which a condemnation of aggressive war might be

based. Some rabbis, for example, rationalized the wars of the Jewish kings by arguing that, in a world of nations permanently hostile to Israel, *any* war against other nations was in effect defensive. This argument implies the idea of what we would now call “preventive war.” Yet broad though the ground it offers may be, the argument implies at least the possibility of criticism. A few commentators have explored this possibility, distinguishing between attacks on nations that are only potential enemies and attacks on those clearly preparing to invade Israel—distinguishing, that is, between broadly preventive and narrowly preemptive war. Other commentators suggest that permitted wars may be fought only against savage peoples—those who fail to observe the Noahide precepts forbidding incest, murder, robbery, idolatry, etc., and among such peoples only against the most utterly depraved. Because neither Christians nor Muslims are savages, according to this definition, war against them is not permitted. But despite these arguments, the rabbinic debate has been less concerned with the grounds for permitted war than with the conditions that must be met before such a war could be undertaken. Instead of principled objections, it offers procedural constraints—for example, that the war must be approved by the (long-defunct) Sanhedrin. In this way, the rabbis hoped to limit wars of aggression in the face of biblical passages endorsing them.

As in Jewish tradition, much of the casuistry of Islam has religious rather than practical significance. Medieval Muslim legal discussion was intended to rationalize the earliest Islamic conquests, and to reconcile the militancy of the expansionist period with the tolerance and nonviolence of many Qur’anic verses. There seems to be no developed conception in traditional Islam, however, of war as a practice among states. Nor is there much that resembles European ideas of interstate aggression and self-defense. Fighting is conceived as taking place between loosely organized parties of believers and unbelievers, and its justification is invariably religious: war is justified to advance the faith against resistance, or to defend Muslim lands against conquest by unbelievers. In the modern West, a “just war” is a finite response to a particular threat, but Islam retains a worldview within which war is an instrument (frowned on by some and celebrated by others) in the permanent struggle to establish the universal dominion of Islam.

Muslim jurists have nevertheless had to deal with the wars of Muslim rulers, and, despite the categories they bring to bear, their concerns are not entirely unlike those that have shaped European just war thinking. For example, they have had to face the problem of distinguishing authorized from unauthorized wars, in response to which they have developed the doctrine that only a lawful ruler (*imam*) of the Muslim community, or those acting by the ruler’s authority, can initiate a jihad to expand the Muslim community. (This doctrine has, of course, been abused by rulers

seeking to justify their wars of conquest and gain.) It would be surprising if Muslim writers had not sought to reconcile Islamic categories with the situation created by the imposition on the Muslim world of European ideas of sovereignty and international relations. In response to this situation, some Muslim writers interpret jihad as forbidding wars of aggression against other states, but as permitting defensive wars, wars of national liberation, and humanitarian intervention.⁴

Christian pacifism is more ambivalent than one might think about whether force can ever be rightly used, and not only because those we have been calling abolitionists and nonviolent resisters sometimes favor collective security, humanitarian intervention, or other ways of using force to protect peace or resist injustice. Even strict pacifists may tolerate the use of force by governments, despite the fact that it is forbidden for Christians, tacitly approving at least some wars while refusing to participate in them.⁵ And the argument that Christians must seek to transform the world through nonviolent action, so that armed force is no longer needed, implies the need for (and therefore the propriety of) using force in the world as it is. But Christian pacifists are understandably reluctant to be drawn into debates about what the proper uses of force might be, and the tradition therefore has no general theory of just war, even for those who are not Christian pacifists and who may be responsible for governing.

Feminism has no consistent position on the grounds for war, nor have feminists given the issue sustained attention. Unlike Christian pacifism, which demands nonviolence as a matter of principle, feminist pacifism often reflects the essentialist view that women are inherently peaceful. Such feminists assume that a world ruled by women would be a world without war. More common than feminist pacifism, however, is the kind of feminism that draws on liberal internationalism and relies on just war ideas to condemn wars of aggression and support wars of liberation. The application to international affairs of the ethics of care yields an anti-war feminism situated uneasily between pacifist and just war convictions. For radical feminism, men in general have long waged an undeclared war on women, a war that has taken the form of institutionalized oppression and violence. Often the metaphor is one of the "colonization" of women by men, which points toward a revolution by women against the colonizer.

RESISTANCE TO POLITICAL AUTHORITY

How do the viewpoints we are considering deal with conflicts within the community, in contrast to conflicts with outsiders? Are there situations in which they might permit such uses of force against incumbent governments as tyrannicide, revolution, or a war of national liberation? Do they recognize the practice of conscientious objection?

In an ethic of law as command, there is always at least an implicit ground for resistance to the commands of a king, and this ground is the commands of God. The rabbinic tradition makes this subordination of the king's laws to those of God explicit. But, doubtless because of the subservient position of the Jews throughout most of their history, resistance to the wicked orders of even a gentile king is more likely to take the form of disobedience than of rebellion. Only in modern times are there Jewish revolutionaries as well as martyrs: it is Zionism rather than the rabbinic tradition that celebrates the Maccabean revolt as a war of national liberation. The generous biblical and talmudic exemptions from military service are probably better seen as a procedural device for constraining royal wars than as an anticipation of the modern (Protestant) idea of conscientious objection, though commentators have begun to search for a biblical warrant for the Jewish conscientious objector.

In the Muslim world, the issue of resistance to illegitimate authority is dramatically illustrated by fundamentalist hostility not only to the West but to the governments of Muslim states, which are seen as the products of colonialism and as corrupted by Western influences. The idea of a jihad to restore the Muslim world to a more complete adherence to Islam therefore makes more sense in the context of debates about the politics of Muslim governments than it does from the perspective of Western liberalism. One obstacle to calling for jihad against Muslim governments, however, is the requirement that it must be properly authorized. The debate over who can and cannot properly authorize a jihad is, therefore, an aspect of the larger debate over religious and political authority now raging throughout the Muslim world.

The idea of a rational (as opposed to a revealed) higher law as a ground for resisting political authority is most fully developed in the tradition of natural law. Efforts to overthrow one's own government are justified only when that government has usurped legitimate authority, or, if legitimate, when it governs in a way that is grossly unjust. When such a government attacks its own subjects, private citizens may rightly resist its attack with force, though this resistance must respect the same constraints that govern the conduct of war against an external aggressor. Private citizens may not punish an unjust ruler, however, any more than they may impose private vengeance on an ordinary criminal. The natural law tradition recognizes a distinction between the usurper and the legitimate but unjust ruler: whereas the latter may retain the authority to rule, the former is a kind of bandit who may be overthrown to protect the community from his depredations.

Short of revolutionary violence, a government may (in some cases must) be resisted when its laws require the performance of gravely immoral acts

or where its policies are evil. Evil laws should be disobeyed and evil policies thwarted. Natural law also permits symbolic resistance (civil disobedience), provided it does not itself involve significant moral wrongs. And it may even permit refusal to participate in military service, not only to avoid involvement in an immoral war, but because such service, even in a just war, may be incompatible with the fulfillment of a person's religious (and perhaps other kinds of) commitment.⁶ In no case are officials excused from the responsibility to give reasons justifying a war, or citizens from the responsibility to weigh the cogency of those reasons and to refuse to serve in or actively support a war that they deem, upon reflection, to be unjust.

Realism divides on the issue of civil resistance, depending on whether the state is seen as intrinsically valuable or merely as an instrument for pursuing what is valuable. Whereas the intrinsic view implies that suppression of dissent is the normal order of things (for citizens are servants of the state), the instrumental view limits suppression to situations of emergency (for the state, to serve its citizens, must be protected against threats to its existence). Even a liberal state, then, must sometimes suspend the rule of law.

Though realist arguments are routinely used to justify the repression of internal as well as external threats to the state, realism has no consistent position on revolution or secession. It can only evaluate resistance to authority on consequentialist grounds: if armed revolt can establish a better community, there is no reason why it should be ruled out, just as the use of force to preserve an existing community cannot be ruled out. Moreover, as a consequentialist ethic focused on the interests of a given community, realism can adopt different communities as the objects of its prudential concern. Consequentialist arguments based on the interests of communities defined by class, nationality, or gender closely resemble (in form if not in content) those based on traditional reasons of state.

Christian pacifists require no special theory of political authority; Christians must simply recognize that authority exists and deal with the implications of that recognition. For the early Christians, the injunction to obey Caesar was a reminder that though they were powerless, God was not. Such an attitude is of course not possible for post-Constantinian Christianity, which must deal with the implications of possessing power. Christian pacifists attempt to deal with these implications by arguing that the church not only must renounce violence but must use its power to overcome the violence of others as well. For some, this has meant a commitment to a nonviolent revolution to overthrow oppressive regimes and to establish liberal-democratic principles. Others argue that the church must resist being co-opted by liberals into thinking it has a stake in maintaining the existence of one state in preference to others. Feminists are also ambiv-

alent about resisting injustice, some arguing for militant action and others counselling withdrawal. Most agree that women must eschew methods that simply replicate the crimes of men; they must resist male violence without themselves becoming violent.

INTENTIONS AND MOTIVES

How do the various perspectives see issues regarding the intention or motive with which one acts, in contrast to the issue of the external conformity of one's acts with moral standards? Are intentions and motives different? Are acts of war rendered unjust if done for the wrong motives?

Natural law discourse clearly distinguishes intentions and motives. There is a sense in which acts are defined by the intentions that give rise to them; an act is what it is because of the intention that informs it. Further, not only is its intention part of the act, but to intend is itself to choose and therefore to act. In contrast, motives are not choices but the emotional circumstances moving ("motivating") one toward or away from particular choices. One might say that intentions are the "why" of action (what is aimed at), motives its "spirit," the state of mind of the agent (individual or collective) and the emotions influencing choice. Intentions are always morally relevant, but motives have moral significance only when they affect what is intended and done.

For natural law, then, both intentions and motives can be relevant to judgments regarding the moral rightness of a choice to fight. And this relevance can be highly constraining, for the choice must be right in every respect. If the ostensible ground of one's act is just (one is choosing military action to reverse an unjust conquest, for example), but what one intends cannot be justified (perhaps the choice is being made by a government to bolster its domestic political standing, or involves a campaign of devastation designed to punish the conqueror or prevent future aggression), then the act cannot be justified. An act may satisfy many moral criteria or have good consequences, but if it is chosen for the wrong reasons, it is wrong. One's motives in waging a war can also be an important consideration in judging it morally: to fight out of hatred or for the pleasures of battle is always wrong. Furthermore, because social as well as individual acts can have a "spirit," a nation's policies can be corrupted by the evil motives of its leaders and citizens if those motives have affected the choice of these policies.

The issue of intent is relevant to a dispute between natural law and pacifism over whether choosing to fight is necessarily to reject peace by willing the death and suffering of one's enemies. According to Finnis, even resistance to aggression cannot justify an intent to kill. War is never a license to kill, and deadly means are properly chosen not to kill those one

is fighting but only to thwart their attacks. That one can foresee death as the consequence of resisting an attacker does not mean that one intends to kill, provided that one's choice in resisting is only to thwart the attack and that the foreseen deaths are the result of using the only available means of resistance. It follows, as Boyle points out, that a war fought without willing the deaths of enemy soldiers—that is, one fought in circumstances in which peace does not exist or is threatened, and where one's intent is to achieve or restore peace by resisting an enemy while causing as little harm to that enemy as possible—is a war that does not require that one turn one's heart against peace in the way that pacifists assume one must whenever one fights.⁷ If this is correct, what divides the natural lawyer and the pacifist is how they apply the principle that forbids actively willing the deaths of one's enemies (itself an interpretation of the principle that evil should not be done so that good may come), not their adherence to that principle itself.

Intentions and motives are secondary in rabbinic discussions of war and peace—though hardly in rabbinic ethics generally—for the rabbis often seem to accept any motive as well as any cause as sufficient for a permitted war. With few explicit exceptions, like Maimonides' suggestion that a Jewish king should fight only to further religious and moral ends, the intentions of Jewish rulers in waging war are simply not discussed. The intentions of non-Jewish rulers, in contrast, are presumed to be evil. Their wars may have historical significance as part of God's plan, but that does not mean that they understand or intend to carry out God's commands; they are his instruments, not his agents.

Political realists also approach the ethics of statecraft with a conception of human action far less nuanced than that of natural law. A standard maxim of realist prudence is that in dealing with actual or potential adversaries, one should concern oneself with their capabilities, not their intentions. Behind this maxim is the premise that intentions are, if not unknowable, at least unreliable—or, in more cynical versions of realism, that everyone intends evil. To the degree that realism is consequentialist, the agent's own intentions are not particularly important, either: if what matters in judging an act is its consequences, then neither intentions nor motives have much ethical significance.

Realists do, however, sometimes cast aspersions on the motives of those who act (or urge others to act) on the basis of moral principles, accusing them of hypocrisy or of being more concerned with keeping their own hands clean than with avoiding disaster (“moralism”), and they sometimes argue that the prudent pursuit of self-interest is a better guide to conduct than morality is. But there is in realism another line of argument that urges an “ethic of responsibility” according to which one must “dirty one's hands,” if necessary, for the good of the community one serves. This is a

motive-based ethic, rather than an ethic of either principles or consequences. The ruler who invokes it says, in effect, “trust me” (to act for the good of the people). In this strand of realism, which is itself a kind of moralism, one’s motives redeem the lies one must tell or the murders one must commit for reasons of state.

It is in Christian pacifism and in feminism, however, that the substitution of judgment and sentiment for abstract reasoning (moral or prudential) has gone furthest. For some feminists, ethics is neither principled nor consequentialist but a matter of developing the appropriate emotional disposition or character, a skill for managing human relationships in a caring way. Morality is a practice of sympathy and affection, not a system of principles or a calculus of consequences. Christian pacifists, too, often put the emphasis on morality as a way of life, one in which love (and worship, which is an expression of love) has a central place. Both are inclined to see the renunciation of violence as essential to the practice of care or love and to the reconciliation of those in conflict with one another. Because both understand morality as a practice involving reason and emotion, Christian pacifism and the feminist ethics of care give more significance to motives than do other perspectives. Both, however, insist that love (or care) is not only a sentiment but also an inherent quality of actions aimed at securing what is good for those who are loved. For pacifists, especially, this can mean an insistence on avoiding harm rather than on acting to rectify injustice—an insistence that may arise from suspicions regarding the motives of those with power, who so often use it to injure while pretending benevolence.

THE CONDUCT OF WAR

What constraints on the conduct of war do the perspectives recognize? How do they deal with problems that arise when moral and prudential considerations pull against one another?

Though every ethical viewpoint recognizes the existence of moral limits on the conduct of war, the implications of this recognition are explored most systematically within the tradition of natural law. According to this tradition, the choices made in conducting a war are governed by the same moral considerations as the decision to initiate it. Both governments and soldiers must intend to fight on just grounds, and their choices must not be motivated by hatred or other doubtful motives. They must avoid causing disproportionate (“unfair”) destruction in pursuit of military ends. Above all, they must not intend, either as an end or as a means to an end, the deaths of innocents.

The moral force of this last constraint, often called the principle of discrimination or noncombatant immunity, is not undermined by uncertain-

ties in distinguishing combatants from noncombatants. The population of any community includes many who are without question noncombatants, and methods of warfare like terror bombing or threats to employ such methods (as in the case of nuclear deterrence) are clearly barred. But one may choose to conduct military operations one knows will harm noncombatants, provided that such harm is unavoidable and that it is proportionate (in the sense that it is the result of an impartial choice in which, for example, “enemy” noncombatants are treated no more harshly than those of “friendly” or “neutral” parties).

Christian pacifism, by its blanket condemnation of war, bars itself from articulating an ethic of military conduct. But some Christian pacifists acknowledge that not all forms of violence are the same, and therefore that if force *is* used, it must be used with discrimination. Distinctions between moral and immoral conduct in war are implicit, for example, in the argument, often made by pacifists, that the destructiveness of modern weapons has made it increasingly difficult to distinguish war from terrorism. Christian pacifism sidelines *ius in bello* issues because its aim is not to develop a casuistry of fighting but to re-center the debate by drawing the line between war and peace rather than between fighting fair and fighting dirty.

Political realism accepts the principles of necessity and proportionality as constraints on the conduct of war, for (as it understands them) these principles are simply applications of the consequentialist prudence that constitutes its ethical core. But the principle of noncombatant immunity, if recognized at all, must be set aside when conformity to it interferes with the effective conduct of war. Realism also denies that in calculating whether an act is proportionate, one must consider impartially the interests of everyone affected by it: the loss of one’s own soldiers or citizens is more properly counted a cost than the loss of enemy soldiers or civilians. In contrast to natural law and even to other forms of consequentialism (like utilitarianism), realist proportionality privileges the interests of one side over the interests of others.

In Islam, constraints on the conduct of war can be traced back to the pre-Islamic “rules of the game” of intertribal warfare. These rules forbade fighting during certain periods of the year and condemned excessive destruction, reflecting both a code of honor that protected the weak—women, children, the aged, and prisoners—and the view that fighting is instrumental to an end. But these rules of war are reinforced by the morality of the Qur’an and the *sunna* (the practice of the Prophet). If the purpose of war is to order the world on Islamic principles, then indiscriminate killing and destruction are forbidden because they neither respect nor further this end. Despite many differences, then, the idea of jihad resembles the Western idea of just war not only in presuming that peace is the end of war but also in insisting that the values of peace govern the conduct of war.

The issue is more complicated in rabbinic Judaism. Just as the absence of a category of forbidden wars complicates the task of rabbinic casuists, so does the biblical command to exterminate the Canaanites in conquering the land of Israel. Whatever limits on the conduct of war the tradition would recognize must be reconciled with these biblical precedents. The rabbis accomplish this reconciliation either by ignoring these passages or by interpreting them to forbid further wars of extermination: the command to “conquer” the land of Israel, for example, is often read as an injunction to settle the land peacefully. But they do not explicitly forbid such wars.

Though Jewish tradition does at times explicitly distinguish combatants and noncombatants (as when Maimonides condemns the wanton destruction of property), more often it does not. The reasons for this rabbinic failure to develop the idea of noncombatant immunity, Walzer suggests, probably lie not in the morality of the rabbis (who had clear ideas about the impropriety of killing the innocent) but in the absence of Jewish armies whose conduct would require regulation. The only context in which the issue is discussed at length is that of siege warfare, regarding which it is sometimes argued that those who wish to flee a besieged city should be allowed to leave. Modern Judaism has developed principles (the so-called “purity of arms” doctrine) that prohibit direct attacks on noncombatants, but the authority of these principles is not firmly established by the traditional sources, their wide acceptance notwithstanding. But the biblical and other passages that might be used to support these principles are there, waiting to be given authority by current interpreters.

MORALITY IN EXTREMITY

What is the force of moral considerations in situations of extremity? Can constraints on the initiation and conduct of war be set aside in emergencies? What constitutes an authentic emergency or situation of extremity?

What may be called the “argument from extremity” holds that, though one must in general behave morally, in situations where either individual lives or the survival of a community are threatened, moral constraints may be violated in order to meet that threat. These are sometimes called “cases of necessity,” an expression that suggests that moral considerations may have to be set aside for consequential reasons.⁸

A version of this argument has long been acknowledged in Judaism, on the ground that the law was given so that Jews might live by it, not die by it. Thus, it is accepted that certain laws (like those that ban fighting on the sabbath) may if necessary be set aside. But no emergency, some hold, can justify violating the laws against murder (“bloodshed” is the term the rabbis use), idolatry, or incest. To interpret the intentional killing

of noncombatants as murder and therefore as forbidden, even to preserve the community, is to offer a plausible but not necessarily authoritative interpretation of the tradition. On this interpretation, danger to a Jewish community cannot justify violating the most basic principles of Jewish morality, for to permit these principles to be abandoned would shatter the integrity of Judaism. Less grave violations of the rules of war, like ignoring rules that forbid the destruction of property, may be permissible in emergencies for the sake of "saving lives," that is, on the ground of necessity. But there are other views. Some rabbinic interpreters argue that the threat of destruction may in certain cases justify bloodshed. Others argue that if you must die rather than commit bloodshed, then you cannot fight even to defend your community against aggression. War, they suggest, is already a corrupted situation, and if you are caught in it different rules may apply.

The natural law tradition distinguishes constraints on war that are based on positive law or custom, and that have moral force for reasons of fairness and reciprocity, from those that embody the exceptionless moral precepts of natural law. Whereas customary constraints may be ignored in situations of extremity, the precepts of natural law may not, because they follow from the principle that evil may not be done so that good may come. This principle is basic because if it is denied, the obligations of morality turn on consequential considerations, and natural law as a system of choice-guiding precepts collapses. In extremity, a community may rightly choose to set aside the positive rules that exist for human convenience, but precepts like those forbidding aggression or the deliberate infliction of harm on the innocent must be respected unconditionally. It is these bedrock prohibitions that lie behind the natural law maxim "Let justice be done though the heavens fall."

The logic of Christian pacifism in dealing with the question of extremity is similar to that of natural law, but pacifists draw the line between the normal and the extreme in a different place. Instead of asking whether the rules of warfare can be overridden in extreme situations, they deny that preserving individual lives or a human community can ever be a reason for setting aside the prohibition of war. The Christian pacifist, however, defends this conclusion on religious rather than natural law grounds: our Christian duty is to obey God's laws, trusting that, if we do, God's purposes will be realized. It is not our duty to try to further these purposes by violating these laws: we are not to help God make history come out right. We are responsible for the consequences of our acts, but our first responsibility is to obey God. We must not identify extremity with threats to our own lives and communities: to put the fortunes of any person or community above obedience to God's laws is a kind of idolatry.

Extremity poses a smaller problem for political realism (and therefore

also for the realist type of feminism) than it does for perspectives that believe certain moral duties to be absolutely binding. In realism, as in consequentialism generally, moral rules—which are never more than instrumental—are likely to be set aside long before a community is faced with disaster. Either consequentialist cost-benefit reasoning is substituted for the judgments of morality (eliminating the need for an escape clause in extreme situations), or morality is often pushed aside because disaster is a possible consequence of any loss of power (which means that there are many potential situations of extremity). In either case, the realist view is that where important communal interests are threatened, those acting for it must act prudently rather than morally. Since this “must” cannot itself be given a moral interpretation,⁹ the claim is that, in emergencies, officials either cannot on consequential grounds afford to be morally constrained or do not have a choice: they are psychologically compelled to ignore morality. According to the latter argument, necessity excuses as well as justifies. Without it, realism is left in the awkward position of substituting one absolute (national security) for another (the moral law).

Though many realists insist on the argument from extremity, for the reasons just given, others accept as prudential wisdom the contrary argument that the rules of war have been framed for situations of grave danger. Many of these rules are expressly concerned with regulating conduct in situations of personal or communal emergency, and these at least should not be set aside when such situations arise. Something like this reasoning is reflected in standard military versions of the laws of war, which treat noncombatant immunity as an absolute standard even though they offer a cost-benefit rationale for it. It should be noticed that these positive codes join natural law in rejecting the compromise proposed by Jeff McMahan, according to which morality is understood to permit the violation of *any* moral constraint under certain conditions. From the standpoint of international as well as natural law, the “commonsense morality” that appears to converge with political realism is, like realism itself, a morality already corrupted by consequentialist rationalization.

CONCLUSION

In an important way, realism and natural law are united with one another and opposed to the other viewpoints: each offers a practical ethic of international relations where the others do not. Realism and natural law can be understood as two sides of a single debate: whether principles or consequences have priority in guiding the conduct of *states*. Both assume that the state is a moral agent, a collective person, and seek to guide judgments concerning the rights and wrongs of state conduct. In each, moralists have attempted to articulate principles of statecraft by drawing on an ethic of

personal conduct—realists applying prudential maxims and natural lawyers applying the moral precepts of natural law.

The other viewpoints do not discuss the conduct of states in this way—but for different reasons. Islamic thought is shaped by the struggle between Islam and non-Islam. For this reason, and because the idea of the territorial state is alien to the tradition, Islamic moralists are inclined to ignore the system of states. They therefore find it hard to adapt Islamic principles to international relations and to war between states.

The attention of rabbinic Judaism, too, is focused on something other than war between states. In discussing war, the rabbis appeal not to personal morality but to biblical passages about the wars of Jewish kings. This gives Jewish tradition a nostalgic or utopian quality—if there were a Jewish state, what could it do? Where the tradition does attempt to deal with the practical issues of relations between states, it often “spiritualizes” war by interpreting the relevant biblical passages in a nonliteral manner (though, as Ravitzky points out, the post-Constantinian Christian tradition treats the pacifist teachings of the New Testament in the same way). There is much in Jewish ethics that could be applied generally to state conduct, including the so-called Jewish natural law of the Noahide commandments.¹⁰ But the rabbinic tradition seldom applies these commandments, or the moral principles that spring from them, to the conduct of the biblical Jewish sovereigns, and it does not concern itself at all with the conduct of Gentiles. Because Jews today take it for granted that morality applies to international relations, they find it hard to believe that the tradition often challenges this view, and that the rabbinic judgments are often at odds with ordinary moral principles.

Islam and Judaism are (at least in modern times) religious communities on the defensive. They therefore tend to see the international system as an alien institution, not as an inclusive international society in which Jewish or Islamic states are related to other states on the basis of common moral rules. Realism and natural law, which developed long before the modern age, have come to terms with the international system and have thus been able to articulate an ethic of foreign policy and war. But Judaism and Islam, as traditions, have not yet embraced such an ethic. With some exceptions, each still reflects the outlook of a people preoccupied with conversion (Islam) or with resisting conversion (the Jews). For realism and natural law, diplomacy and war are the normal order of things and call for practical ethical guidance; for Judaism and Islam, they are symptoms of a condition to be endured in the interregnum before a new order is established.

The messianism of Christian pacifism may help to explain why it, too, has failed to develop an ethic of statecraft. Pacifist ethics is not primarily concerned with the state as a moral agent but with how individuals should think about their own conduct in relation to war. Listening to rabbinic and

pacifist arguments, one feels that one is listening to the views of people who are not in power and who are not worried about the decisions people in power must make. The rabbis puzzle over problems of religious rather than practical significance, whereas Christian pacifists argue about what it means to be nonviolent in a violent world. This remoteness from practical politics is also evident in feminism. Insofar as they are concerned with war and peace, then, Judaism, pacifism, and feminism offer guidance about how Jews, pacifists, or women should behave in a world dominated by Gentiles, nonpacifists, or men. If Muslims stand apart, it is perhaps because Islam expects to triumph in this world and the others do not.

NOTES

1. See below, under "Intentions and Motives."
2. Chapter 11 above.
3. The distinction between these various grounds for war is not always clear. Self-defense merges imperceptibly into restitutory warfare against a conqueror and into protecting other victims of aggression. And punishment is hard to distinguish from self-defense when the emphasis is on deterrence rather than on retribution.
4. As Sohail Hashmi suggests in Chapter 8 above, Muslims can be particularly open to humanitarian intervention because Islam assigns little importance to territorial sovereignty.
5. Though self-defense needs no elaborate justification for those whose outlook is shaped by natural law, the Christian pacifist may find it easier to accept the use of force to protect the innocent—which can be seen as an expression of love for one's neighbor—than to protect, and therefore prefer, one's own self.
6. See Boyle's discussion of this point in Chapter 2 above, under "Resistance to Political Authority."
7. See Boyle, Chapter 2 above, under "War and Peace."
8. Alan Donagan, *The Theory of Morality* (Chicago: University of Chicago Press, 1978), ch. 6.
9. I try to explain why in "Nuclear War and the Argument from Extremity," in Avner Cohen and Steven Lee, eds., *Nuclear Weapons and the Future of Humanity* (Totowa, NJ: Rowman and Allanheld, 1986), 289–305.
10. See Ravitzky, Chapter 6 above, and David Novak, *Jewish Social Ethics* (New York: Oxford University Press, 1992).